

Lalta Prasad v. State of U.P.

Allahabad High Court · Division Bench · 12 March 2018 · WRIT - C No. - 9100 of 2018 · **Writ dismissed on alternative remedy under clause 7.10.**

HEADNOTE

A writ seeking to quash an electricity demand is not maintainable after the Consumer Grievances Redressal Forum has already dismissed a challenge to the same bill, because clause 7.10 of the U.P. Electricity Supply Code, 2005 provides a statutory representation to the Ombudsman. The petition was dismissed on the ground of alternative remedy.

FACTUAL SUMMARY

The petitioner, Lalta Prasad, filed a writ seeking to quash a demand notice dated 18 February 2013 calling on him to deposit Rs. 1,90,266 towards electricity dues. He had earlier challenged the correctness of that bill before the Electricity Consumer Grievances Redressal Forum, Agra Division, Agra. The Forum dismissed the complaint on 27 November 2017 and held him liable to pay Rs. 1,90,288. The licensee contended that the recovery now pursued was of that same amount.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

ombudsman-alternative-remedy

HOLDING

Where a consumer has already unsuccessfully challenged the same electricity bill before the Consumer Grievances Redressal Forum, a writ petition to quash the consequent demand is dismissed on the ground of alternative remedy, a statutory representation to the Ombudsman remaining available under clause 7.10 of the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND NOTICE AND OF THE CGRF ORDER DATED 27.11.2017

The writ was dismissed on alternative remedy without examining the billing merits. ¶ 1